

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 493

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO COMMERCIAL SEXUAL ACTIVITY; AMENDING SECTION 18-5614, IDAHO CODE, TO REVISE THE PENALTY FOR SOLICITING COMMERCIAL SEXUAL ACTIVITY AND TO MAKE A TECHNICAL CORRECTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-5614, Idaho Code, be, and the same is hereby amended to read as follows:

18-5614. SOLICITING COMMERCIAL SEXUAL ACTIVITY. (1) A person is guilty of soliciting commercial sexual activity when he or she:

(a) Pays, offers to pay, or agrees to pay another person a fee for the purpose of engaging in sexual contact; or

(b) Offers a third person to engage in, or agrees to provide a third person to engage in, sexual contact in return for a fee.

(2) Soliciting commercial sexual activity shall be a misdemeanor for any person eighteen (18) years of age or older but under twenty-one (21) years of age, provided that a second or subsequent conviction therefor shall be a felony. Any person convicted of a misdemeanor violation of this section shall be sentenced to a minimum period of confinement of five (5) days in jail and may be sentenced to up to one (1) year in jail or fined up to two thousand dollars (\$2,000), or both. The minimum period of confinement shall be served in a county jail, and a court shall not have the power to suspend, withhold, retain jurisdiction over, or commute the minimum period of confinement imposed pursuant to this section.

(3) Soliciting commercial sexual activity shall be a felony for any person twenty-one (21) years of age or older. Any person convicted of a felony violation of this section shall be sentenced to a minimum period of confinement of six (6) months in jail and may be sentenced to up to three (3) years in jail or fined up to ten thousand dollars (\$10,000), or both. The minimum period of confinement shall be served in a county jail, and a court shall not have the power to suspend, withhold, retain jurisdiction over, or commute the minimum period of confinement imposed pursuant to the provisions of this section.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.